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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SANTA CLARA

HANNA MARS

Plaintiff(s),

vs.

KOSTIANTYN MARS,

Defendant(s).

) Case No.: 22FL003144

)
) **TRANSCRIPT OF HEARING**
) **BEFORE THE JUDGE**
) **STEPHEN LOWNEY**

)
) **DATE: February 7, 2024**
) **DEPT: 79**
)
)

TRANSCRIPT OF HEARING

BEFORE THE JUDGE STEPHEN LOWNEY

Date: February 7, 2024

Prepared from the official court audio recording

APPEARANCES:

For Petitioner Hanna Mars:

Nancy Roberts, Esq.

Assisted by Maria Rekretyuk, Certified Ukrainian Language Interpreter (Bench No. 700739)

For Respondent Kostiantyn Mars:

Kostiantyn Mars, appearing pro se

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PROCEEDINGS

[00:00:00]

PARTICIPANTS: Good afternoon. Good afternoon.

JUDGE STEPHEN LOWNY: Appearances, please.

MR. MARS: Kostiantyn Mars, petitioner.

MS. ROBERTS: Nancy Roberts for respondent Hanna Mars, who is present. She is assisted by the Ukrainian interpreter.

INTERPRETER MARIA REKRETYUK: Interpreter, Maria Rekretyuk, registered Ukrainian language interpreter, bench number 700739, open file.

[00:00:39]

JUDGE STEPHEN LOWNY: All right. So we are here on several matters. We passed a matter that was on this morning's calendar, line number three, and we passed it to this afternoon.

[00:01:00]

JUDGE STEPHEN LOWNY: And that is the one I want to take up first: Mr. Mars' request for a motion to disqualify opposing counsel. Before we get started, are there any issues that need to be discussed?

MR. MARS: Your Honor, from my side, my printer was out of paper. I was not able to make copies for this matter. I did courtesy copies of evidence for the restraining order, and unfortunately we didn't have a chance to prepare copies for disqualification of opposing counsel, so it was something I would like to bring to the attention of the Court.

JUDGE STEPHEN LOWNY: So were you served with this motion?

MS. ROBERTS: I received his response, Your Honor.

[00:01:42]

JUDGE STEPHEN LOWNY: This is on the motion to disqualify.

MS. ROBERTS: Oh, the motion to disqualify?

JUDGE STEPHEN LOWNY: Yeah, that's what we're doing right now.

MS. ROBERTS: Yes, I received it, but I am objecting. Mr. Mars has served amended pleadings for most of these motions, and I was served like five days before this hearing, so I have responded to the original motion, and his amended motions are not timely.

1 [00:02:07]

2 **JUDGE STEPHEN LOWNEY:** So I understand that you're objecting. Yes. And I understand
3 the merits of the objection. Would you nevertheless like to proceed today and get an answer on
4 this?

5 **MS. ROBERTS:** Yes, Your Honor, but if there's any new claims that were brought up.
6 Absolutely. Thank you.

7 **JUDGE STEPHEN LOWNEY:** Absolutely.

8 **MS. ROBERTS:** I also have one issue that needs to be addressed. It is impossible to
9 personally serve Mr. Mars. He has given a PO box to the court and to my office. As you know,
10 you can obtain the residential address for a PO box. When that was done, the PO box address
11 given was another PO box, and then when I followed up on that PO box, he had closed that box
12 and moved. Okay. I had a process server go out; he has not been at that address for the last nine
13 months. I understand the post office is looking into it, but I have no way, at this point in time,
14 other than in court, to serve Mr. Mars. Okay.

15 **JUDGE STEPHEN LOWNEY:** And is this about which thing you are trying to pursue?

16 **MS. ROBERTS:** I had to continue the contempt hearing. Okay. I get a new date because
17 serving him today would mean it's outside the 16 court days.

18 **JUDGE STEPHEN LOWNEY:** Okay, and I believe that continuance is granted.

19 **MS. ROBERTS:** Yes, it was.

20 **JUDGE STEPHEN LOWNEY:** Okay. And it's rescheduled.

21 **MS. ROBERTS:** The problem is that this issue will come up in the future. There's still no
22 address at which he can be served personally.

23 [00:03:37]

24 **JUDGE STEPHEN LOWNEY:** All right, Mr. Mars, service is important in this case. We
25 need to have an address for you to be personally served if we're going to move forward on
26 certain things.

27 **MR. MARS:** Your Honor, taking into account the massive fraud scheme that opposing
28 counsel...

JUDGE STEPHEN LOWNEY: I didn't get that.

[00:04:00]

MR. MARS: Taking into account the massive fraud scheme that opposing counsel created
against me, unfortunately, I feel unsafe to share my address. And, uh, I'm available for
personal service on the phone call. I can come to Mr. Roberts' office and just be served. So I'm
open for service, and we have contact with Ms. Roberts all the time.

1 **JUDGE STEPHEN LOWNEY:** Okay, so just so you know, if you are not going to make
2 yourself available for personal service, and the court, under the code, finds that you are
3 evading, and essentially, if you are not going to make yourself available for personal service,
the court can find you're evading, and can order alternative means of service, which would
require you to accept, for example, electronic service.

4 [00:04:48]

5 **MR. MARS:** Thank you, Your Honor. I would kind of ask you to allow electronic service.

6 **JUDGE STEPHEN LOWNEY:** Allow?

7 **MR. MARS:** Yes.

8 **JUDGE STEPHEN LOWNEY:** In personal service, in lieu of personal service. When it is
9 required, electronic service is going to be deemed appropriate. And same for any service going
10 forward.

11 **MR. MARS:** Thank you, Your Honor.

12 **JUDGE STEPHEN LOWNEY:** Okay.

13 **MS. ROBERTS:** Okay. Thank you, sir.

14 [00:05:12]

15 **JUDGE STEPHEN LOWNEY:** Again, let's move to the first, the motion to disqualify
16 opposing counsel. Yes, I'm sorry, we're going to - that's where I'm going to start. Can you
repeat your comment?

17 **(Clerk True Parker swears the parties)**

18 **CLERK:** Do you both promise to state under penalty of perjury that your testimony shall be
19 the truth, and only the truth?

20 [00:06:00]

21 **JUDGE STEPHEN LOWNEY:** Mr. Mars, it looks like this same motion - and this was on
22 June 22nd, 2023, and the same motion was denied on August 1st, 2023. Just so you know, the
legal standard for bringing this motion again is that you need to provide newer, different facts
23 or circumstances or law that warrants the court to reconsider this motion. So between the time
of the denial, August 1, 2023, and the time that you filed this, what new law, facts, or
24 circumstances? And keep in mind that I looked at your prior motion in preparation for today.
So what new law, facts, or circumstances?

25 **MR. MARS:** May I use my laptop to look up documents?

26 **JUDGE STEPHEN LOWNEY:** You may.
27
28

1 [00:07:33]

2 **MR. MARS:** The first fact that changed since August is the disqualification of Judge Flint.

3 **JUDGE STEPHEN LOWNY:** Go ahead.

4 **MR. MARS:** So the first is the disqualification of Judge Flint. And I do know that the court brought this in a different light.

5 So the first fact is the verified written statement of disqualification against Judge Flint was
6 addressed to Presiding Judge Beth McGowen.

7 [00:08:14]

8 **JUDGE STEPHEN LOWNY:** Thank you. So we're going to go one at a time. So the fact
9 that a judge has changed since the actual ruling on this is not a legally sufficient change of
circumstance. Because that's not a changed circumstance that would justify reconsideration.

10 **MR. MARS:** Your Honor, I'm bringing it because there was a suspect that opposing counsel
11 Nancy Roberts was in a criminal conspiracy with Judge Flint. And that's why I'm bringing it to
the attention of the court.

12 **JUDGE STEPHEN LOWNY:** So I understand you want to bring lots of different things to
13 the attention of the court. But I'm going to focus here. Okay? So another? That is not a
14 changed circumstance. So you need to give me a changed circumstance before I'm going to
reconsider.

15 [00:09:17]

16 **MR. MARS:** Another change of circumstances is professionally supervised reports containing
17 the evidence that the respondent kidnapped my son to an undisclosed location and pulled out a
SIM card from my son's phone to block our contact.

18 **JUDGE STEPHEN LOWNY:** Okay. So what is the date of that?

19 **MR. MARS:** Let me check the evidence.

20 [00:09:53]

21 **MS. ROBERTS:** Your Honor, I didn't get what was that?

22 **JUDGE STEPHEN LOWNY:** It was an allegation that a SIM card was pulled out. That
23 kidnapping or abduction occurred.

24 [00:10:08]

25 **MR. MARS:** So I just need to pull up a visitation report. This was November 10, 2023. The
26 respondent kidnapped my son, which I do classify as parental child abduction.

27 **JUDGE STEPHEN LOWNY:** When?

1 **MR. MARS:** The respondent moved my son in April 2023 to an unknown location and refused
2 to share the address where my son is detained.

3 **JUDGE STEPHEN LOWNY:** Okay, so let me stop you here, because I looked at your prior
4 motion and you are just saying the same to me.

5 **MR. MARS:** But I'm talking about a supervised report which confirms that the respondent
6 pulled out a SIM card from Max's phone keeping my son without any means of contact, and
7 this report was made on November 10th. So it's a new fact which confirms -

8 **JUDGE STEPHEN LOWNY:** But this is a disqualification motion, so it would have to be a
9 new fact that justifies disqualification. This is not disqualification of the respondent.

10 **MR. MARS:** Yes, Your Honor. But among evidence that I filed for disqualification of
11 opposing counsel, there are messages where the respondent confirms that her attorney suggests
12 to block all contact with the child and force me to surrender custody, which they call "sign a
13 new agreement."

14 **[00:12:01]**

15 **JUDGE STEPHEN LOWNY:** So beyond the allegations of kidnapping and abduction, do
16 you have any other basis for disqualification?

17 **[00:12:13]**

18 **MR. MARS:** Your Honor, so another basis, um, that might be old, but I would like to bring it
19 to attention to the court, that Judge Flint unlawfully removed signed emergency screener
20 recommendations that were filed with the court.

21 **JUDGE STEPHEN LOWNY:** So this is an allegation against Judge Flint?

22 **MR. MARS:** No.

23 **JUDGE STEPHEN LOWNY:** This motion is for disqualification of opposing counsel.

24 **MR. MARS:** Um, Your Honor, this is an allegation against opposing counsel - because
25 opposing counsel lied to Judge Flint during the hearing on June 29th. And Judge Flint trusted
26 opposing counsel that signed emergency screener recommendations were falsified, allegedly,
27 but that message was sent to the court. And that message was forwarded to you, Your Honor...

28 **JUDGE STEPHEN LOWNY:** So all of these allegations were produced in May in your
June disqualification.

MR. MARS: I did bring a screenshot of the email thread of conversation of the opposing
attorney with the court.

JUDGE STEPHEN LOWNY: It has to be something new. It can't be cumulative evidence
of your allegations that you've already made.

1 [00:13:26]

2 **MR. MARS:** Let me check it again.

3 **JUDGE STEPHEN LOWNEY:** Okay, just one more time and I'm about to get the response.

4 [00:14:14]

5 **MR. MARS:** Your Honor, it also was brought to the attention of the Court... I mean, it's not as
6 important as child abduction was committed on advice of attorney, and it is not as important as
7 lying to judge in the courtroom during hearing, which led to dismissal of signed emergency
8 screener recommendations, but it was brought to the court that on December 12th, Ms. Roberts
was attempting evasion of service. And, unfortunately, the same day she harassed process
servers, which was documented in email and evidence.

9 **JUDGE STEPHEN LOWNEY:** Okay. All right, Ms. Roberts, do you have any comments?

10 **MS. ROBERTS:** Just on this one. Yes, um, this is actually the same as the first motion, which
11 was denied. There are no legal grounds for disqualification of counsel. There is no conflict of
12 interest. And my client is requesting that the court deny Mr. Mars' motion and that he be
sanctioned for bringing this motion.

13 **MR. MARS:** Objection.

14 **JUDGE STEPHEN LOWNEY:** Go on.

15 **MR. MARS:** Regarding permissible conflict of interest, I do believe that the definition of
16 impermissible conflict of interest is included in Motion to Disqualify Opposing Attorney, and
17 contains legal grounds, which you most probably saw, have to take into attention, and I will not
18 repeat them. Impermissible conflict of interest obviously exists, because of repetitive pressure
on professional supervisors and pressure on emergency screener, both are documented in
evidence. Unfortunately, this confirms that Nancy Roberts went much further than just a legal
argument during court hearings.

19 **MS. ROBERTS:** I would object to assuming facts are not evidence.

20 [00:16:02]

21 **JUDGE STEPHEN LOWNEY:** So it does assume facts are not evidence. However, even if
22 those facts were true - and the court is not saying at all that they are true - that is not a conflict
23 of interest. That is a disagreement about how to defend a client. So the court is not going to
24 reconsider your motion because I don't find any legally sufficient facts, any clear
25 circumstances or law warranting reconsideration for your motion to disqualify. And let me say,
if I did believe that this was new information, I have examined the information and heard from
both parties, and even if I was going to consider it, I would deny it as insufficient.

26 [00:17:00]

27 **JUDGE STEPHEN LOWNEY:** So let's move on to number two. And number two is, Mr.
28 Mars, your request to modify child custody and child visitation and appoint minor's counsel to
Max. Is that correct?

1 **MR. MARS:** Initially it was requested to grant child abduction prevention orders and to
2 review emergency screener recommendations which were removed without consideration.

3 [00:17:49]

4 **JUDGE STEPHEN LOWNY:** When was the time you filed it?

5 **MR. MARS:** The version was filed on January 17th, but I think the initial version was filed in
6 August. Yes, it is an amended version, but form 300 wasn't modified.

7 [00:20:00]

8 **JUDGE STEPHEN LOWNY:** So I got the amended request for order, and it says that
9 you're asking for child abduction prevention orders, and they're asking for totally new custody,
10 joint legal, physical custody, and a brief end to the child abduction order, and amended
11 scheduled exchanges on Wednesdays after school. Um, again, it's going to be the same
12 question. What are the changes and advances from the prior orders of 10/31/22? Does everyone
13 agree that the prior orders are from 10/31/22? Ms. Roberts?

14 **MS. ROBERTS:** There are two sets of orders, Your Honor. One set of orders is 10/2022.
15 There are also orders that are not in conflict that were filed on January 26, 2023. That's not the
16 timeshare, but they are additional continuity orders.

17 **JUDGE STEPHEN LOWNY:** Okay. This includes orders on what changed in
18 circumstances. Do you have to justify a modification?

19 **MR. MARS:** I do believe that this matter could be heard only after trial on opposing DVROs.
20 Because on November 28th I filed a DVRO against the respondent to protect my son from
21 domestic violence and international child abduction. So I'm kindly asking you to hear this
22 matter after opposing DVROs, because there's dependency on extensive critical evidence.

23 **JUDGE STEPHEN LOWNY:** So right now you're withdrawing your request for
24 modification?

25 **MR. MARS:** I do not withdraw the request, but I do believe that it depends on what the court -

26 **JUDGE STEPHEN LOWNY:** You want the court to reserve judgment on the issue?

27 **MR. MARS:** I do, until after the DVRO trial. Thank you, Your Honor.

28 **JUDGE STEPHEN LOWNY:** Ms. Roberts?

MS. ROBERTS: I would agree with him on the issue of the restraining order. Also, that Mr.
Mars has been in contempt for some of these orders.

MR. MARS: Objection.

JUDGE STEPHEN LOWNY: No, sir.

MR. MARS: I'm not in contempt.

1 **JUDGE STEPHEN LOWNEY:** Okay, that's overruled. Um, so I just want to make sure I am
2 keeping track of your requests. So line 2, we are going to reserve on - I'm sorry, line 1 on this
3 calendar, we are going to reserve any modification of child custody and child visitations and
4 any request contained in that order.

5 The next one on our calendar also looks like a set-aside order from June 29, 2023. We need to
6 file this request for order so we make sure we're not going to have to correct it. When did you
7 file this request for order? Set aside.

8 **[00:23:46]**

9 **MR. MARS:** Let me check. Meanwhile, I do remember there was a request for media
10 coverage of this hearing.

11 **JUDGE STEPHEN LOWNEY:** It was denied. It was denied formally. You should have
12 received notice.

13 **MR. MARS:** I didn't receive it.

14 **JUDGE STEPHEN LOWNEY:** It says it comes from our media coordinator and it doesn't
15 come from me. The service list. I believe that's tomorrow's motion.

16 **MS. ROBERTS:** It's followed by March 30th.

17 **JUDGE STEPHEN LOWNEY:** Thank you.

18 **MR. MARS:** June 29th. It was filed on August 30.

19 **JUDGE STEPHEN LOWNEY:** Did anyone expect any witnesses? I am not sure who. You
20 have to know the names of your witnesses. So my question is, there's somebody called Ren
21 Bird.

22 **MR. MARS:** I think so.

23 **JUDGE STEPHEN LOWNEY:** You think so?

24 **MR. MARS:** Yes.

25 **JUDGE STEPHEN LOWNEY:** Okay, so you have to tell the names of your witnesses. You
26 have to know who they are and what they're going to say. Do you know who this person is?

27 **MR. MARS:** No, I'm not sure.

28 **JUDGE STEPHEN LOWNEY:** Okay, so they won't be able to join.

1 [00:28:22]

2 **JUDGE STEPHEN LOWNEY:** Okay, Mr. Mars, what exactly are you looking for in this
3 request?

4 **MR. MARS:** I didn't prepare for this matter today. I didn't take evidence, uh, but briefly I do
5 remember that orders on June 29 were made extremely favorable for respondent by Judge Flint
6 who was suspected of receiving bribes from respondent, and were made without consideration
7 of any evidence.

8 **JUDGE STEPHEN LOWNEY:** So your allegations of bribery and fraud are not proven. They
9 assume facts, not evidence. And the court is not going to consider them. And I do not want to
10 hear that. All right. So let's talk about this 6/29 order. Tell me the reasons, the legal reasons
11 you believe the court should reconsider and set it aside.

12 **MR. MARS:** Your Honor, I have kindly asked the court to reconsider this order and review
13 evidence related to parental child abduction because initial request for hearing on June 29th
14 was related to the fact the respondent, without notice, without prior notice, moved my son to an
15 unknown location, refused to share address or give me a phone call with my son.

16 **JUDGE STEPHEN LOWNEY:** Okay, so Mr. Mars, it must not be lost on you that you're
17 using the same allegations to ask the court to set aside all of these orders, the same exact
18 allegations.

19 **MR. MARS:** I apologize, but I think that for this specific order it was very relevant, because
20 that hearing was brought to the attention of the court.

21 **JUDGE STEPHEN LOWNEY:** Right, so my problem is, at that hearing, you brought up all
22 of these things. And your request was denied.

23 **MR. MARS:** My request was denied by disqualified suspected of bribery Judge Flint.

24 **JUDGE STEPHEN LOWNEY:** Right.

25 **MR. MARS:** I will not repeat my words because you said I shouldn't, right? But evidence was
26 never reviewed, and emergency screener was not subpoenaed neither in the best interest of the
27 child, nor on the safety of the child.

28 **JUDGE STEPHEN LOWNEY:** But those are not - those are complaints about how the
hearing went, and how you wanted it to go, and what you wanted to be considered at the time
of the hearing. Those aren't new facts and circumstances that would justify reconsideration and
a set-aside of that order.

MR. MARS: Your Honor, I understand your position. And I trust you as a judge, but I just
bring to your attention the fact that that order was intentionally wrongful and my son deserves
to have freedom and father.

1 **JUDGE STEPHEN LOWNEY:** Okay, so I understand you disagree, but in those
2 circumstances, where there are not changes filed or changes in law, the law provides a remedy.
3 And that remedy is an appeal, a timely filed appeal. And an appeal is saying exactly what you
4 are saying to the court. You believe it was wrongly decided. You would like it to be heard
5 again. But that is not the basis of a motion for reconsideration. Okay? So that request to set
6 aside the June 29 order is denied. And it is denied because there are no new circumstances,
7 facts, or law that would justify a reconsideration. And having heard the proper reasons for
8 reconsideration, even if there were new circumstances, law, or facts, the court would deem
9 them legally insufficient to set aside the order.

10 **MS. ROBERTS:** I'm sorry, Your Honor. There's been so many motions filed in this case. Was
11 that still regarding custody and child custody?

12 **[00:33:01]**

13 **JUDGE STEPHEN LOWNEY:** That was regarding the motion to set aside the 6/29. So it
14 would be number three on today's calendar. Now we'll go to number four on this afternoon's
15 calendar. This is a request to set aside an order filed on July 31st, 2023. And that is your
16 request, Mr. Mars.

17 **MR. MARS:** Yes.

18 **JUDGE STEPHEN LOWNEY:** And what is the change of circumstances? The law or facts
19 that were judged by the consideration.

20 **MR. MARS:** Your Honor, as you mentioned, I cannot say why Judge Flint made that wrongful
21 order, so I would just say that Judge Flint made an order without consideration of balance
22 statements and sale agreement for Volkswagen Tiguan that is in possession of respondent. I do
23 believe there were some other wrongful orders, but this one is outstanding because we cannot
24 transfer title to respondent. And my request was to resolve the matter of transferring title
25 because, as you're aware, I'm on the brink of bankruptcy. I do not have \$6,000 dollars to buy
26 out a car. And I kindly offered the respondent's attorney to settle an agreement.

27 **JUDGE STEPHEN LOWNEY:** And so I imagine all of those facts were brought to the
28 court's attention at that time?

MR. MARS: Unfortunately, Judge Flint refused to review evidence and refused to review a
car sale agreement.

JUDGE STEPHEN LOWNEY: Did you make those arguments at that time?

MR. MARS: I think so. But...

JUDGE STEPHEN LOWNEY: Hold on, hold on.

MS. ROBERTS: Objection.

JUDGE STEPHEN LOWNEY: Okay, which one?

MS. ROBERTS: ...that the judge did not consider his evidence.

1 [00:36:00]

2 **JUDGE STEPHEN LOWNEY:** So again, you disagree with the order. I understand that. We
3 just talked about an appeal, and when an appeal is appropriate, um, it sounds like you made
4 these arguments in front of Judge Flint. I don't know why you would not have. It was listened
5 to. You don't think it was considered, but it was at least listened to. It was presented and
6 afterwards denied. Or there was an order made that you disagreed with. Correct?

7 **MR. MARS:** Your Honor, as far as I remember, on July 31st I did request for continuance due
8 to medical emergency, and because Judge Flint had prejudice against me, she denied all my
9 requests, and during the hearing I've been seating with a very severe head and tooth pain, and
10 it was very hard to focus at the matter.

11 [00:37:02]

12 **JUDGE STEPHEN LOWNEY:** Okay. So again, the court was made aware of all of those
13 things? And that is not new to the court, and so there is no basis for reconsideration. So that
14 request is also going to be denied.

15 **MR. MARS:** Your Honor, may I ask you at least to reserve this matter until a final trial?
16 Because we need to transfer the car title to the respondent. And unfortunately we are blocked
17 because the car is registered to me.

18 **JUDGE STEPHEN LOWNEY:** So I'm not going to reserve an issue that has already been
19 decided in an order already made.

20 **MR. MARS:** Your Honor, how can we resolve it? I cannot say how the court at this moment is
21 refusing to come to an agreement about payment.

22 **JUDGE STEPHEN LOWNEY:** Um, in normal circumstances, there would be a meet and
23 confer, and mediation on these things, and a settlement officer conference. But it's not to ask
24 the court to set aside a lawful order.

25 **MR. MARS:** Thank you, Your Honor. Do I understand correctly that we can bring this matter
26 to a family status conference?

27 **JUDGE STEPHEN LOWNEY:** So we're not ready to do that. I'm just saying that there are
28 ways to resolve these issues. But you would have to agree on a way to resolve these issues.
And we're not quite there yet. But the way, it certainly isn't a way to ask the person to set
aside.

[00:38:20]

MR. MARS: It sounds familiar.

JUDGE STEPHEN LOWNEY: And let's go on. So lines 5 and 6 are the mutual requests for
domestic violence restraining orders. The normal course would be to - is everybody ready for
trial?

MS. ROBERTS: Before we get to that issue, can we get another resolution?

1 **JUDGE STEPHEN LOWNY:** I was going to do that. Oh, okay, fine. Um, we still have, so
2 normal course of business on these types of cases. We will accept them. Other issues are
3 waiting to be resolved. Are both sides ready for trial?

4 **MS. ROBERTS:** Yes, sir.

5 **MR. MARS:** Yes, Your Honor.

6 **JUDGE STEPHEN LOWNY:** And time of trial? Is that your case?

7 **MR. MARS:** I would try to do it in two hours. If you would allow me to present the evidence.

8 **JUDGE STEPHEN LOWNY:** You're going to do it in two hours for news, your witnesses,
9 and any evidence that you want to do?

10 **MR. MARS:** Yes, Your Honor.

11 **JUDGE STEPHEN LOWNY:** So let's set it for half a day. Just so you're aware, it's going
12 to be some time. We have a heavily impacted trial calendar. When is the party anticipated being
13 ready for a final trial on all the outstanding things?

14 **MS. ROBERTS:** I'm not sure we can address that anytime soon. A final trial and termination
15 of status, but there is no QDRO in place because Mr. Mars is not cooperating with the court
16 order and he's not signing the QDRO.

17 **MR. MARS:** Objection. We do have a QDRO.

18 **JUDGE STEPHEN LOWNY:** I got it. And I have to apologize. I'm getting more
19 information than I can. The first full half day I have is June 17th at 9:00 a.m. All parties will
20 have to be personally present, exchange witnesses and exhibits five days before. I'm
21 authorizing, as I said before, electronic service for both sides. I'm going to be reading through
22 these trial exhibits. Not by email, but by e-filing.

23 **MR. MARS:** Your Honor, how much is this different from filing in person?

24 **JUDGE STEPHEN LOWNY:** You file, so you know how to electronically file things,
25 correct?

26 **MR. MARS:** Possibly.

27 **[00:43:58]**

28 **JUDGE STEPHEN LOWNY:** These are going to be electronically filed. And I should say,
please read our email policy. You're emailing too many things to the court. And as an added
incentive regarding our email policy, if it's violated, I didn't receive them. Okay?

MR. MARS: Okay, apologies for that. These will not be emailed to the court.

1 [00:44:09]

2 **MR. MARS:** Your Honor, may you please consider the date for a final trial? Because we will
3 not need the settlement conference.

4 **JUDGE STEPHEN LOWNEY:** You don't need it or don't want it?

5 **MR. MARS:** I sent a marital settlement agreement this morning. It is a sixth amended version.
6 And unfortunately Ms. Roberts answered this morning that she doesn't want to cooperate. So I
7 would kindly ask for a trial date to finalize divorce matter. And I kindly ask the court to grant
8 me permission to file QDRO for the signature of the court because it's ready.

9 **JUDGE STEPHEN LOWNEY:** To file what?

10 **MR. MARS:** QDRO to divide my 401(k).

11 **JUDGE STEPHEN LOWNEY:** That's not on today.

12 **MR. MARS:** Is it possible to get a date for the final trial?

13 **JUDGE STEPHEN LOWNEY:** It doesn't sound like the parties are ready. So you have to
14 vote when you are ready. And you're not going to get away with not having a settlement
15 conference, or a mandatory settlement, or a settlement officer conference, or a mandatory
16 settlement conference. Those are going to happen no matter what. Um, and the DVRO also has
17 to be set, has to be done before the final trial, because we can't do permanent orders on file and
18 other things.

19 **MR. MARS:** Is it possible to hear DVROs trial today?

20 **JUDGE STEPHEN LOWNEY:** No. And the request for a final trial date is denied. And I
21 should also add, um, we can't just bring up new things when we're in court. So everybody has
22 a notice, that's why we have notice and opportunity to be heard. Um, you can imagine if you
23 saw the product of a brand new subject, um, you would want time, notice, and opportunity.

24 [00:46:16]

25 **MS. ROBERTS:** [Indistinguishable]

26 **MR. MARS:** Objection. Your Honor, I think we need a status conference. This potentially may
27 settle things.

28 **JUDGE STEPHEN LOWNEY:** You can settle things on your own. It's got to. The settlement
is not going to occur at the status conference.

MR. MARS: So you're saying the status conference is not going to happen before trial?

JUDGE STEPHEN LOWNEY: No, mandatory settlement conference.

[00:46:39]

MR. MARS: Can we get a settlement conference please?

1 **JUDGE STEPHEN LOWNEY:** No, we need a trial date first. We're not - we're just not there
2 yet. We're not there yet. We just set a domestic violence restraining order trial in June. Um, so
3 that needs to be settled. You are free to settle any matters that you want without court
4 intervention, but those do not happen at a settlement conference.

5 [00:47:02]

6 **MR. MARS:** Your Honor, I just kindly ask you to consider the possibility of hearing the
7 DVRO before June, because it will already be two years of unreasonably extended unlawful
8 detention and parental alienation of my son.

9 **JUDGE STEPHEN LOWNEY:** These were both just recently filed, so the court is not
10 sympathetic. And these are subsequent, second DVROs, so the court is really not sympathetic
11 about these filings.

12 **JUDGE STEPHEN LOWNEY:** We are going to vacate the March 5th status conference. We
13 are not going to set a trial. We have our next stage on the DVRO. And I'm sure we have more
14 to come out. We are going to move on.

15 [00:48:17]

16 **JUDGE STEPHEN LOWNEY:** So this may be the same request, but this is another
17 modification to set aside the orders from July 31, 2023. That looks like a repeat request. Um,
18 yes, I think you already heard this today. Right, but I'm just saying if I'm correct. Um, maybe
19 very promising. I'm not sure. I want to make sure that we address this.

20 [00:48:47]

21 **JUDGE STEPHEN LOWNEY:** And now we're going to go to the respondent's request for
22 orders.

23 [00:49:00]

24 **JUDGE STEPHEN LOWNEY:** I have a note on this. Can you remind me of your filing date?

25 **MS. ROBERTS:** Filing date was September 26th, 2023.

26 [00:50:00]

27 **JUDGE STEPHEN LOWNEY:** January 11th, 2023. And that would continue. Okay, so at
28 your request for order, I will let you present it in the order that you would like.

MS. ROBERTS: Yes, Your Honor. The first request was to have Mr. Mars declared a
vexatious litigant.

MS. ROBERTS: In the six months after his former counsel withdrew, there were 14 motions
filed and appealed. Um, the divorce case was filed in Ukraine. These consisted of prejudgment
refusals.

MS. ROBERTS: One request for a final trial was then continued out, several custody review
requests, a contempt motion, a motion to disqualify me as respondent's counsel, two motions to

1 terminate wage withholding orders, a motion to reconsider a court order, and a motion to
2 change venue.

3 **MS. ROBERTS:** Since the filing of the motion on September 22nd, in the last four months,
4 there have been six amended final trial dates, six amended exhibits for custody trial, additional
5 motions, five to six additional motions for custody review, motions to recuse Judge Flint, an
6 additional motion to disqualify me, an additional contempt motion, additional motions to
7 incriminate the ways that the building ordinance is in order, three motions to modify support
8 and custody.

9 **MS. ROBERTS:** Two motions for reconsideration and a motion to bifurcate and terminate
10 marital status. I have no more room in my office for all these motions. If each motion has the
11 same 250 pages of exhibits attached, it is difficult to even keep straight which pleading Mr.
12 Mars is requesting.

13 **MS. ROBERTS:** There are amendments to everything. Um, most of these motions have been
14 denied. I'm asking this court to list Mr. Mars as a vexatious litigant to prohibit his filing
15 without the leave of the presiding judge in order to put an end to this. I'm very concerned that
16 even once this case is resolved, with the filing of support and custody motions two and three
17 every month. But this is never ending.

18 [00:52:01]

19 **JUDGE STEPHEN LOWNEY:** So now it's your turn to respond.

20 [00:53:00]

21 **MR. MARS:** I kindly bring to your attention that there were nine motions to recuse Judge
22 Flint. And as you mentioned, I will not raise again the reasons why, but there was a strong
23 belief that there was a criminal conspiracy between Nancy Roberts and Judge Andrea Flint.

24 **MR. MARS:** Therefore, those motions were very reasonable. And the reason was to move on
25 with the case. Because unfortunately Ms. Roberts, together with Judge Flint, were sabotaging
26 finalization of this case. So Ms. Roberts did know that.

27 **JUDGE STEPHEN LOWNEY:** So Mr. Mars, you brought a motion to disqualify Judge Flint
28 - and what was the result?

MR. MARS: The first time it was denied by Judge Flint without consideration. And then I
brought it again.

MR. MARS: I brought a verified written statement of disqualification of Judge Flint to the
attention of Presiding Judge Beth McGowen.

JUDGE STEPHEN LOWNEY: And what was the result?

MR. MARS: I'm waiting for a response. As far as I know, it was considered, but I'm waiting
for a formal response.

1 [00:53:54]

2 **JUDGE STEPHEN LOWNY:** And the reason for all of these other motions?

3 **MR. MARS:** So Your Honor, as you might be aware, Judge Flint was in a criminal conspiracy
4 with Roberts and they are coercing me to surrender custody rights.

5 **MS. ROBERTS:** Objection.

6 **JUDGE STEPHEN LOWNY:** I just need to hear what he has to say first. Go ahead.

7 **MR. MARS:** There were repetitive attempts to coerce me to surrender custody and abandon
8 my son Max Mars. Orders from June 29th ordered no contact with my son without any merit.

9 **MR. MARS:** Initial opposing DVROs from September 2022 were never heard.

10 **MR. MARS:** Because Nancy Roberts, together with my attorney Steven Dinneen at that time,
11 conspired together with Flint and dismissed the trial on DVROs.

12 **JUDGE STEPHEN LOWNY:** Okay. So let me just stop you here. So you've heard the court
13 today evaluate some of your motions. None of them have a legal basis. You have given the
14 same reasons for every single one of your motions. You seem to be very focused on those
15 reasons.

16 **JUDGE STEPHEN LOWNY:** If I don't grant this order, what will stop you from continuing
17 to file requests for orders on the same exact basis that you did today?

18 [00:55:19]

19 **MR. MARS:** My word.

20 **JUDGE STEPHEN LOWNY:** Requests for orders. On the same exact basis that you did
21 today.

22 **MR. MARS:** Your Honor, I trust you - because you are the new hope for this court. And for
23 me personally, you are the hope that this court may be impartial, honest, and serve justice.

24 **JUDGE STEPHEN LOWNY:** Okay. So let's say that is true. This court, and me personally,
25 follow the same laws that have been in this court since the beginning of this litigation. We
26 follow the same standards. Those standards are not going to change. The law is the law. And I
27 am not confident at this time that you will only file meritorious requests for orders. In other
28 words, you looked at the law, you understand what the law is, there are new facts that apply to
the law, and you're requesting the order or filing the motion because you believe you have a
better than 50 percent chance of winning the motion. That's why you file motions. If you're
just filing motions because you want to be heard again on your allegation, that is not a good
basis to file a motion.

MR. MARS: Your Honor, I do believe this is a mistake of many self-represented litigants, and
I kindly ask you for a chance to fix my mistake.

1 **JUDGE STEPHEN LOWNEY:** So just so you know, um, this court has heard motions from
2 hundreds and hundreds and hundreds of self-represented litigants. And I can tell you that it's
3 not that common, okay? The number of sheer motions that are then filed in this case is not
4 common.

5 **MR. MARS:** Thank you, Your Honor. It's because I really worry about the life of my son Max
6 Mars.

7 And I would love to share this story with you if you would allow...

8 **JUDGE STEPHEN LOWNEY:** So again, we're going to focus on the law, the requirements
9 of the law. And what you are supposed to consider before you are filing. Alright, um, are your
10 other requests for orders related to your vexatious litigant?

11 **MS. ROBERTS:** No, they are not.

12 **JUDGE STEPHEN LOWNEY:** Just one moment. On the vexatious litigant request. Ms.
13 Roberts, you filed this back in September. You were good enough to then recount what had
14 happened since September. What I would like is further briefing - not much - just what has
15 happened since September that would, in your mind, justify the vexatious litigant designation.
16 Then I'm just asking for a subsequent briefing.

17 **JUDGE STEPHEN LOWNEY:** Mr. Mars, again, this was filed in September. And so I want
18 the same thing from you. Since September, I want your reasons for why the court should not
19 declare you a vexatious litigant. And I want that in writing. I don't want to put too much
20 pressure on the parties. Can the court have that by February 16th?

21 **[00:59:12]**

22 **MS. ROBERTS:** You would like that filed?

23 **JUDGE STEPHEN LOWNEY:** I would like it filed.

24 **MR. MARS:** May I ask for March 1st? To get more time.

25 **JUDGE STEPHEN LOWNEY:** Give me the reason.

26 **MR. MARS:** Just to better prepare the brief, because I will be busy the next two weeks with
27 job-related matters and I would prefer to get time to prepare the brief better.

28 **JUDGE STEPHEN LOWNEY:** We were speaking on February 23rd.

MR. MARS: Thank you, Your Honor.

[00:59:48]

JUDGE STEPHEN LOWNEY: So I'm looking for briefings by February 23rd, and then I am
going to make the decision which I will put in writing by March 8th.

MR. MARS: Your Honor, should this briefing be filed with a declaration like MC-025 or just
the rule?

1 **JUDGE STEPHEN LOWNY:** Yeah, you can do it that way. Just as long as I can identify it
2 in the queue amongst all the others. And I will be able to. You can file it any way in which you
3 can clearly identify the rule. You can put that in “further briefing on vexatious litigant.”

4 **JUDGE STEPHEN LOWNY:** Give me just one moment. Alright, so now I’m looking at
5 your request for a court order. And it looks like we would be on your label number two. Is that
6 the duty of unsurrendered legal documents?

7 [01:02:13]

8 **MS. ROBERTS:** Yes. That was a court order made back in July of last year. I have sent Mr.
9 Mars several emails that he was court-ordered to bring those documents to my office to be
10 held. Ms. Mars could come and look at the documents in my office. They were giving out in
11 front of me. Mr. Mars refuses to give up anything.

12 **MS. ROBERTS:** So, Mr. Mars, as I said before, he has absolutely everything: his vaccination
13 record, his green card, his passport. And he’s in violation of the court order. So I’m asking if
14 you will not move, to court sign to re-issue those. Um, that’s all I can think of, because Mr.
15 Mars just doesn’t obey court orders.

16 **JUDGE STEPHEN LOWNY:** Mr. Mars, can you respond?

17 **MR. MARS:** Yes. So this matter cannot be heard until we hear opposing DVROs in June.

18 [01:03:11]

19 **JUDGE STEPHEN LOWNY:** Why is that?

20 **MR. MARS:** The reason is that my son was abducted by a respondent. I am a primary parent.
21 I’ve been taking care of my son. I provided a green card to my son. On August 25, my son
22 received a green card and the respondent promised to “bury our son in Ukrainian soil, so you
23 will never see him again.”

24 [01:03:35]

25 **JUDGE STEPHEN LOWNY:** So what? We’re talking about documents.

26 **MR. MARS:** Yes, Your Honor.

27 **JUDGE STEPHEN LOWNY:** And you’ve been ordered to turn them over.

28 **MR. MARS:** Yes, Your Honor.

JUDGE STEPHEN LOWNY: You must turn them over.

MR. MARS: Those orders were done by disqualified child trafficker Judge Flint.

JUDGE STEPHEN LOWNY: Yes, and they’re valid. Yes. We’ve just gone over all of it.

MR. MARS: Those orders were made against the factual and legal basis of the case.

1 **JUDGE STEPHEN LOWNEY:** The orders stand.

2 **MR. MARS:** I understand, Your Honor, but I kindly request to stay this order until trial on
3 opposing DVROs will be heard.

4 **JUDGE STEPHEN LOWNEY:** Denied. You must comply with the orders.

5 **MR. MARS:** Your Honor, my son will be abducted to Ukraine and will never return. There is a
6 war. Max can die. May I explain with evidence?

7 **JUDGE STEPHEN LOWNEY:** I want you to listen to the court. We have just gone over a
8 vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the
9 conduct in this case regarding filed motions. What is also really relevant to that designation
10 and to the court in general is when you are ordered to do something by the court, that you
11 comply - and that goes with both parties - and you are not complying. It's not good.

12 **MR. MARS:** Your Honor, I would love to comply, but first I need this matter to be heard.

13 **JUDGE STEPHEN LOWNEY:** You don't understand. So you do not set conditions on when
14 the court orders are to be complied with. You just comply.

15 **MR. MARS:** Your Honor, this order endangers the life of my son, and the court denies me to
16 hear this matter. What should I do?

17 [01:05:23]

18 **JUDGE STEPHEN LOWNEY:** You should have appealed the order. We've gone over this.
19 You disagree with it, the order was heard, you disagree with it, it was valid, and the law
20 provides a remedy, and that remedy is appeal. You did not appeal. The order is valid. You must
21 comply.

22 **MR. MARS:** Your Honor, signature of disqualified Judge Towery, who also was removed
23 from court like Flint, cost my mom her life, terminal condition, because respondent with
24 signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from
25 home and caused death.

26 **JUDGE STEPHEN LOWNEY:** So, Mr. Mars, you have to comply.

27 **MR. MARS:** Your Honor, could we hear this matter?

28 **JUDGE STEPHEN LOWNEY:** I'm hearing it. I'm hearing it right now.

MR. MARS: With evidence, your Honor. With evidence that confirms that the respondent
doesn't have any bond with the United States and abducts my son to Ukraine.

JUDGE STEPHEN LOWNEY: No, no, no. You're asking for the hearing of the previous
matter. No, they're not.

[01:06:28]

MR. MARS: So the only way is appeal, right?

1 **JUDGE STEPHEN LOWNY:** The only way for you to have that order reversed is for you
2 to appeal, which you did not appeal. You apparently decided you weren't going to comply. I
3 know that you have reasons, but your reasons are irrelevant. The only thing that we are here
today is to talk about the fact that you are going to comply.

4 **[01:07:00]**

5 **MR. MARS:** Do I have any choice?

6 **JUDGE STEPHEN LOWNY:** You do not have any choice. That's what I've been trying to
7 say. You do not have a choice. The court has a lot of choices. I should tell you that. The court
8 has a lot of choices on how it's going to enforce its orders. I'm trying to reason with you, and
I'm trying to get you to understand that it's in your best interest, in a lot of different ways, to
comply with these orders.

9 **MR. MARS:** I understand, Your Honor.

10 **JUDGE STEPHEN LOWNY:** So here's what I want to hear.

11 **MR. MARS:** What should I do if my son will die after international abduction, becoming a
12 victim of the war in Ukraine?

13 **[01:07:39]**

14 **JUDGE STEPHEN LOWNY:** I know you want the order changed. I know you want me to
15 change it. I'm not going to, and you are going to comply.

16 **[01:07:55]**

17 **JUDGE STEPHEN LOWNY:** And just to be clear, because I want the record to be clear, the
18 request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the
minor child.

19 **MS. ROBERTS:** Yes, to follow the court order from July trial.

20 **JUDGE STEPHEN LOWNY:** And you are ordered to comply. To the letter, every part of
21 that order.

22 **[01:08:24]**

23 **MR. MARS:** Your Honor, what exactly is requested? And who should receive the documents
of my son?

24 **MS. ROBERTS:** The court order, Your Honor, is to deliver them to my office. They are to be
25 held in trust by my office.

26 **JUDGE STEPHEN LOWNY:** Do you have the order?

27 **MR. MARS:** Your Honor, I don't have it, and I would raise to the attention of the court that
28 Nancy Roberts was requested to be disqualified, and I don't trust her with the life of my son.

1 **JUDGE STEPHEN LOWNEY:** I understand. But you're saying you do not have the court
2 order?

3 [01:09:00]

4 **MR. MARS:** I do not have it, but I can probably obtain it.

5 **MS. ROBERTS:** I believe it is July 29th.

6 **MR. MARS:** If it is June 29th then I have it, and it's evidence of motion to reconsider.

7 **JUDGE STEPHEN LOWNEY:** I'm gonna print it out for you.

8 **MR. MARS:** Thank you, Your Honor.

9 [01:09:25]

10 **JUDGE STEPHEN LOWNEY:** Did you say July 29th?

11 **MR. MARS:** June 29th. This order was made by Judge Flint who was suspected in bribery,
12 committed child trafficking and refused to review evidence.

13 **JUDGE STEPHEN LOWNEY:** So you're gonna keep saying that even though the court said
14 you don't?

15 [01:10:00]

16 **MR. MARS:** Of course I won't.

17 [01:10:12]

18 **MS. ROBERTS:** It was June 29th, Your Honor, I apologize. The trial was on June 29th. The
19 written orders were filed on July 31st.

20 [01:11:00]

21 **JUDGE STEPHEN LOWNEY:** The order at the hearing was on, filed on July 31st?

22 **MS. ROBERTS:** It should say partial orders at partial trial, uh, was July 31st. Okay.

23 **JUDGE STEPHEN LOWNEY:** Deputy, can you hand a copy of this order to Mr. Mars,
24 please?

25 [01:12:09]

26 **MS. ROBERTS:** Your Honor, can we have a date by which Mr. Mars will be responsible?

27 **JUDGE STEPHEN LOWNEY:** Yes, so today is the 7th. Mr. Mars, I'm going to ask you to
28 comply with this order by February 15th.

1 [01:12:47]

2 **MR. MARS:** I ask for a stay of this order until the final trial.

3 **JUDGE STEPHEN LOWNY:** Denied.

4 [01:13:04]

5 **MS. ROBERTS:** Your Honor, the next request has to do with the same orders that were filed
6 on July 31st. The court ordered that Ms. Mars was to be awarded the VW Tiguan without
7 offset. Um, and that Mr. Mars was to pass the title to her. After the court made that order, Mr.
8 Mars then volunteered that there was a loan on the vehicle that he had in his name.

9 **MS. ROBERTS:** I spoke to the lenders. They told me that because the loan was in his name,
10 he could not pass the title to Ms. Mars. So I spoke to Mr. Mars and suggested that he provide
11 me with the latest loan statement. If Ms. Mars paid off the loan, he would receive the title, and
12 then he'd transfer the title. And he's demanding the full value price of the car that you paid for.

13 **MS. ROBERTS:** Um, not the quarter. Um, and so what I'm asking for the quarter is that he
14 provides the office with the latest lender statement. That Ms. Mars be allowed to pay off the
15 loan, and that he then transfers title to Ms. Mars. And if he does not do so, the court clerk signs
16 the title as elisor.

17 **MR. MARS:** Objection, Your Honor. So Your Honor, I offered opposing counsel two options
18 to pay either balance on the date of separation as was ordered by Judge Flint, or full price. It
19 was in the evidence for the final trial that was dismissed by you. And I think I provided both
20 statements. And all the documents to make sure that, yes, unfortunately, this car was loaned,
21 advance from the revenue end to transfer title item.

22 [01:15:03]

23 **JUDGE STEPHEN LOWNY:** Alright, Mr. Mars, the order was for you to transfer the title.
24 That has not occurred. A solution has been proposed that will, that does not hurt you at all.
25 Um, and in fact requires respondent to pay down the rest of the car. And so I do not see why
26 you're standing in the way of that.

27 [01:15:26]

28 **MR. MARS:** Your Honor, I don't understand why Ms. Roberts is refusing to pay for title
transfer.

[01:15:36]

MS. ROBERTS: Your Honor, the only statement you provided me was for the purchase price
of the car, which is not the point of order.

MR. MARS: Objection.

MS. ROBERTS: Ms. Mars demanded the current loan balance, and he will not provide me
with that statement.

1 **MR. MARS:** Objection. So, um, excuse me, but I provided the current statement on loan, on
2 the date of separation. And it was provided right away with all property documents. I just
admit that Ms. Roberts is refusing to cooperate...

3 **JUDGE STEPHEN LOWNY:** So what you need to do is you need to provide the current
4 loan balance as of today.

5 **MR. MARS:** Okay, I'll do it.

6 **JUDGE STEPHEN LOWNY:** And then she is going to pay off that balance. And once it's
7 paid off, and you then have the title, you must provide the title to her. You must sign off the
notice of release of liability and transfer of ownership.

8 **MR. MARS:** Absolutely. Your Honor, could you please include an order that respondent
9 transfers me the amount in the statement so I pay off my balance?

10 **JUDGE STEPHEN LOWNY:** No.

11 **MR. MARS:** Your Honor, I'm not sure if she can do this technically. That's why I'm asking
for her to transfer money to me. So I will pay off. It will be much faster than she does.

12 [01:17:00]

13 **JUDGE STEPHEN LOWNY:** Ms. Roberts?

14 **MS. ROBERTS:** I don't believe that Ms. Mars will do that...

15 [01:17:07]

16 **JUDGE STEPHEN LOWNY:** If it becomes a problem, we can revisit it. So those are the
17 orders.

18 **MR. MARS:** Thank you, Your Honor.

19 **MS. ROBERTS:** If Mr. Mars does not sign off on the title - he gets contempt...

20 [01:17:28]

21 **MR. MARS:** Objection, Your Honor. That's why I'm asking for respondent to transfer money
22 to me. Because Ms. Roberts will file another vexatious litigant or contempt without reasons
and without merits. I have a task to transfer money to me. I will pay my balance and transfer
23 title.

24 [01:17:46]

25 **JUDGE STEPHEN LOWNY:** So, Mr. Mars, once title is given to you by whatever bank is
26 holding the loan, you must transfer title forthwith, which means immediately. Immediately.
Yes. There's not going to be any -

27 **MR. MARS:** No, there are no reasons for delaying. What I'm asking for is just the word.
28

1 **JUDGE STEPHEN LOWNEY:** It will be a violation of the court order if you do not transfer
2 the title once you receive it immediately.

3 [01:18:21]

4 **JUDGE STEPHEN LOWNEY:** And I'm going to say within 24 hours of you having it in
5 your hand. You must transfer the title.

6 **MR. MARS:** Did you see evidence with the statements?

7 **JUDGE STEPHEN LOWNEY:** That's it. That's it. That's the end of the discussion on that.

8 **MR. MARS:** Just to conclude, so the respondent transfers money to me, and I transfer the
9 title?

10 **JUDGE STEPHEN LOWNEY:** Yeah, right. Respondent, pay up the money to the company.
11 The company. We're not going to keep going around and around on these small things, okay?

12 **MR. MARS:** No, I just wanted to confirm that Ms. Roberts will send me a notification and call
13 me when they will buy out, because they will file another contempt on me without any merits.

14 [01:19:19]

15 **MS. ROBERTS:** You won't be notified, Mr. Mars. As soon as you give me the statement, it
16 will be paid.

17 **MR. MARS:** Ms. Roberts, you give your word?

18 **MS. ROBERTS:** That is my word, yes.

19 [01:20:00]

20 **JUDGE STEPHEN LOWNEY:** Okay and what is the next request?

21 **MS. ROBERTS:** The last request, because the last three issues have been resolved. The last
22 issue is one of the court's prior orders was that the parties divide Mr. Mars' 401(k) for the price
23 of employment, and that they be concerned regarding the choice of an expert to draft the
24 QDRO.

25 **MS. ROBERTS:** That didn't happen, so the court appointed Barbara Strasen to draft the
26 QDRO. Um, she sent out her contact for the parties to sign. Mr. Mars refused to pay the tuition
27 that each party could have. So Ms. Mars paid it in order to get the sewing. And now Ms.
28 Strasen thinks that to this date, and it's been a number of months, Mr. Mars is not signing off
on their contract.

MR. MARS: Objection.

[01:21:00]

MS. ROBERTS: Um, therefore, uh, what he's done is he's drafted his own QDRO and said,
sign it, we don't need that, and we're not willing to do that, and there's already a court order to

1 sign this, so it's, and we don't have the information for this, because he's not providing it to
2 Barbara Strasen.

3 **MR. MARS:** Objection.

4 **MS. ROBERTS:** I had asked for an authorization to be signed by Mr. Mars, so that with less
5 cost, I could obtain the records from his employer and the retirement plan.

6 **JUDGE STEPHEN LOWNY:** Stop. Okay. Alright. So let's have a little chat about
7 objections. So objections in court are legal objections. So there has to be a legal basis. They are
8 not, and shouldn't be, tools to interrupt the other side. I am not going to allow Ms. Roberts to
9 interrupt you when you are speaking. And so don't use objection, which is a legal term, to
10 interrupt her. I'm going to give you a fair chance to say your respect. Also, I can't listen to her
11 when we're doing that, and I can't listen to you if she is going to do that. That's going to stop.
12 Now it's your time to respond.

13 **[01:22:15]**

14 **MR. MARS:** Your Honor, I provided QDRO prepared by my 401(k) provider to Ms. Roberts,
15 and filed it to the court for final trial, but for some reasons it was ignored. I do understand that
16 Ms. Roberts is mentioning that Ms. Roberts with her client prepared some other QDRO, which
17 I'm not aware of.

18 **MR. MARS:** I do ask the judge, Your Honor, to decide which QDRO to use. I do believe that
19 QDRO provided by the provider is much faster and straightforward. Again, it's done by
20 professionals who own that account. But in any matter, if Your Honor will decide that we need
21 to use a QDRO prepared by opposing counsel, that is totally fine.

22 **MR. MARS:** I would just kindly ask to forward that QDRO to me. I'm not aware of the final
23 decision on that.

24 **[01:23:31]**

25 **JUDGE STEPHEN LOWNY:** May I pull out this - what is the -

26 **JUDGE STEPHEN LOWNY:** The partial trial order.

27 **MS. ROBERTS:** Yes. And then there's the subsequent. The order states that the parties are
28 unable to reach an agreement, they submit names or talk to representatives. And so it was only
the case in the first option.

JUDGE STEPHEN LOWNY: Okay. Hold on, may I - hold on. I gotta find the partial order.

JUDGE STEPHEN LOWNY: Okay, I found it. This is an order dated August 29th, 2023.
Based on the pertinent part, the parties were ordered to retain an expert to complete the QDRO
based on the timeline. The parties were ordered to meet and confer to select an expert and
select many of the QDROs July 31st, 2023. If there was no agreement, the parties were to
submit three names directly to the Department of 79's email and the court would select the
names. The cost of the QDRO could be shared equally by the parties. Respondent's attorney
notified the court and petitioner by email on August 9th, 2023, that the parties had not reached
agreement on the names of the witnesses. Respondent counsel provided the court with three

1 names from which to choose the joint experts. The petitioner objected. Having already ruled
2 that the court would select the mutual expert if there was no agreement between the parties, the
3 court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with
4 Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with
5 that order.

6 **MR. MARS:** Your Honor, could you please clarify what exactly is requested from me at this
7 moment?

8 **JUDGE STEPHEN LOWNY:** It complies with the August 29th, 2023 order regarding the
9 QDRO. It's super clear.

10 **MR. MARS:** Which actions are required from me at the moment?

11 **JUDGE STEPHEN LOWNY:** You have to - Ms. Strasen is the project expert. The fee will
12 be split between the two of you. You will pay half, and you will cooperate with me. We will
13 provide the information required to complete the QDRO, and then she will complete her
14 analysis.

15 **MR. MARS:** Do I need to submit any documents?

16 **JUDGE STEPHEN LOWNY:** I just have the minutes reflect that I have printed out both
17 copies of the orders that were -

18 **MR. MARS:** I would kindly ask you for a statement of decision for this hearing.

19 **JUDGE STEPHEN LOWNY:** Denied.

20 **MR. MARS:** It was filed.

21 **JUDGE STEPHEN LOWNY:** I saw it. I'm considering it, and I'm denying it. Within the
22 court's ultimate discretion, I will not oppose or motion whether or not a statement of decision
23 is appropriate. And I don't find it is, either.

24 **MS. ROBERTS:** If I may clarify, Your Honor, several emails sent from Ms. Strasen's office
25 with her contract and it notes documents that may be required to ensure a stringent response.

26 **JUDGE STEPHEN LOWNY:** So to the extent that clarification would be needed, Mr. Mars
27 will have that clarification and the orders will be complied with.

28 **JUDGE STEPHEN LOWNY:** Thank you parties. I look forward to your briefing, and I'll
have that decision.

PARTICIPANTS: Thank you, Your Honor.

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2 **CERTIFICATION**

3 I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California
4 and the United States of America that the foregoing transcript is a true, accurate, and complete
5 transcription of the official audio recording of the hearing held on February 7, 2024, before the
6 Honorable Stephen Lowney in Superior Court of California, County of Santa Clara, Case No.
7 22FL003144.

8 All speaker identifications and timestamps are preserved as they appear in the official
9 recording.

10 Executed on April 8, 2026, at Austin, Texas.

11
12 DATED: April 8, 2026

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15 KOSTIANTYN MARS
16 Pro Se
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